

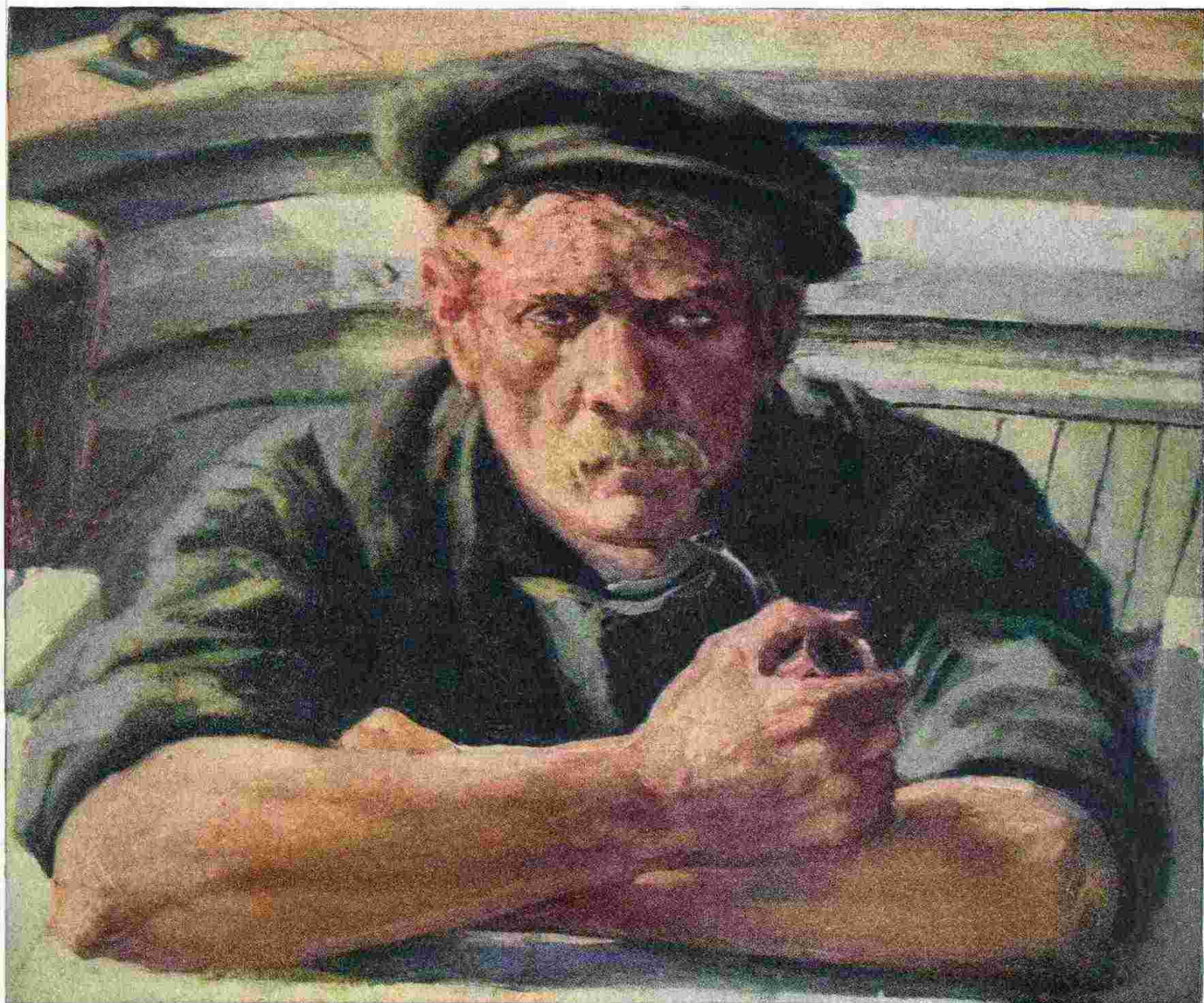
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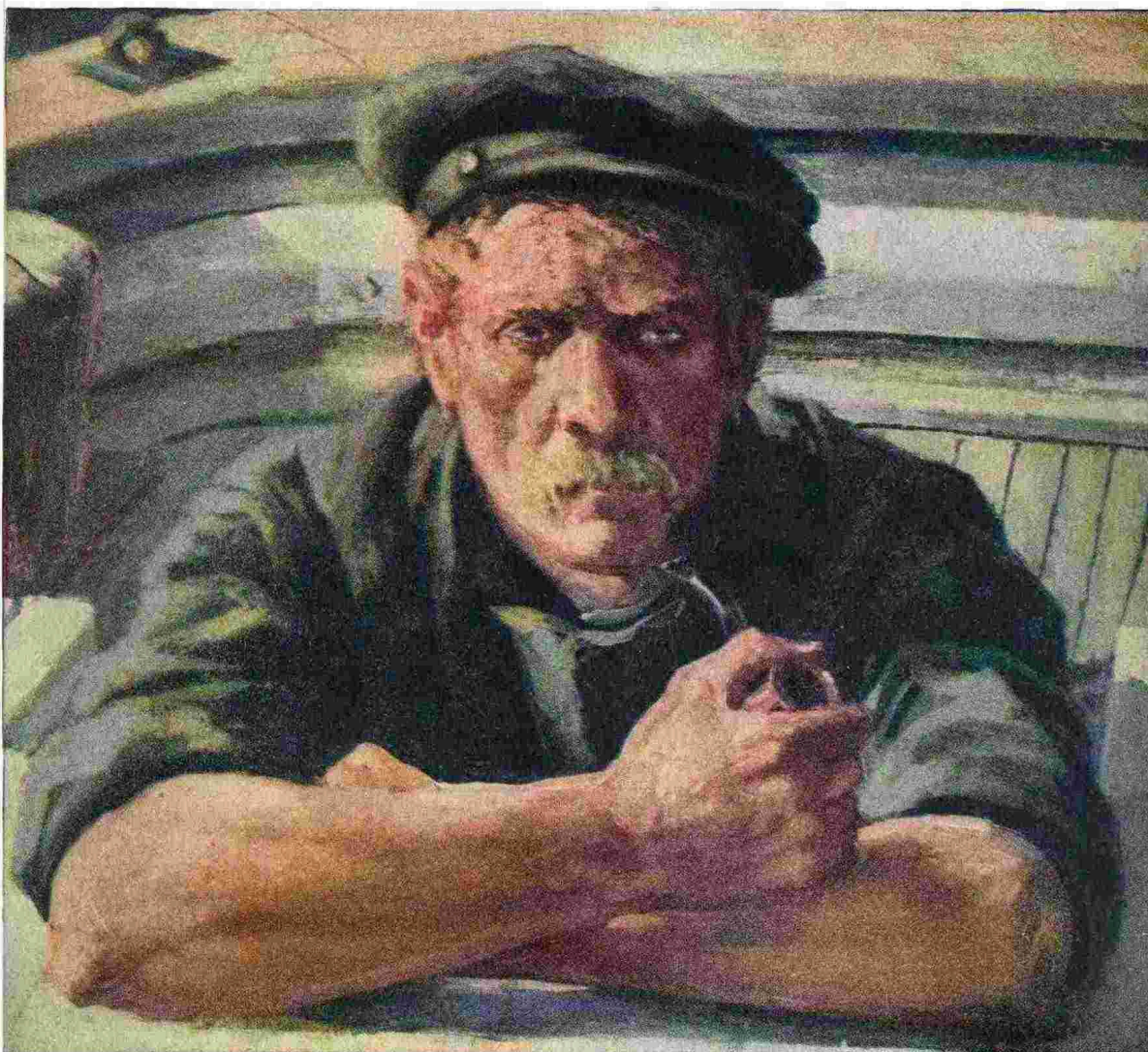


COMPLETE NOVEL BY SOLOMONS
STORIES BY BOWER - STACPOOLE
-CULLEN-NORTON AND OTHERS-

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*** START OF THE PROJECT GUTENBERG EBOOK "OLD
HARMLESS" ***

“Old Harmless”

By Roy Norton

Author of “David and Goliath,” “The Box,” Etc.

Uncle Bill loved his gulch, and David and Goliath loved Uncle Bill. When trouble came they promised to stick by him to the bitter end—which wasn't so bitter, after all.

It was a long distance from the beaten roads to where “Old Harmless” had his cabin; quite over the top of ridges, down across intervening valleys, around mountain shelves where a pack burro might not slip with impunity, and with now and then a gurgling little stream to ford that became a dangerous place when spring freshets ran high and filled a gulch. It was not a place that any one other than a recluse might have chosen for permanent domicile, but to Old Harmless it was Heaven. He was convinced that somewhere within its borders there was wealth.

“Yes, sir, I reckon that some place in these here hills, right about the rim of this gulch, thar’s a ledge of gold that orter go about ten thousand dollars a ton!” he was wont to explain to the partners, David and Goliath, when they visited him by climbing to a high, steep ridge, traversing the crest of a rugged, barren range, and then dropping down long, steep hills into the valley where Old Harmless dwelt and strove with infinite and inexhaustible patience and optimism. “And that ain’t exactly all of it, either. You see, I diskivered this gulch in ’fifty-eight, and I took a right-smart lot of pay outen this flat, and there was some other fellers came, and they called it Harmon’s Camp. Named it arter me, you see. An’ they built some stores and—by Matildy!—they was a post office here oncet, where a feller could go and git his mail. If he had any to git.”

Always at this point he would shake his head with an air of melancholy. And always the partners would appear sympathetic, and interested, as if this were the first, rather than the hundredth or so, time they had heard this tale. Always one of them politely said, “Psho! What happened to her, Uncle Bill?” And always Old Harmless brightened up, and rambled on.

“Well, you see in them days nobody stuck around a flat after what was easiest ter git was worked out. Everybody jest naturally went somewhere else ter find somethin’ else that was easy ter git and so, bimeby, thar wan’t nobody left here at Harmon’s but me. Yes, sir, nobody but me. An’ bein’ young an’ foolish, bimeby I went, too. Shook her. But—I allers kept comin’ back. Then, when it seemed as if thar wan’t nothin’ left anywhere, and all them railroads kem to Californy, and there wan’t no other place left to go, I come back here to stay. An’ so—here I be. Right here. An’—I reckon I’ll

stay here till I die. It ain't so much the findin' gold, with me, as it is that I'm so used ter this here place. Seems like I know every tree in this here flat, and they're all friends of mine. Why, I talk ter 'em, I do. They was one blow down, last spring, one that I always called 'Old Sam,' because he was so big and husky and had been here so long before I came, and he looked ter me like he might be the granddaddy of all trees, and I got ter sort of love him.

"It sounds mighty foolish, but on the mornin' after the big storm when I saw that Old Sam was done, I sat down on him an' felt like cryin' and was sort of deespirited, because it was as if I, too, was a-gitin' old and some day all the other trees, these friends of mine, would wake up in the mornin' and find that I'd gone, too, and wasn't never goin' ter be seen around, or heard talkin' ter 'em any more."

Invariably, at this finish, as if suddenly aware of his loquacity; his betrayal of sentiment; his slipped confession, he would recover, cackle, pretend to make a joke, and hide his abashment. And invariably the partners joined in his laugh, but it was never a laugh that reached their eyes, for always they knew that he had voiced his heart. Each of them, shy, outwardly rough, inwardly sentimental, had known hills and trees they had loved. They, too, lived in the world of outdoors, where everything of life has its characteristics, its entity, its individuality, its struggle to live. They, too, sometimes believed that trees observe, confide, or perhaps love comrades.

"I kin always scratch up enough dust for bacon and beans, by workin' the old dumps with my old Long Tom or a string of sluices," Old Harmless once explained. "Nobody bothers me here. Nobody ever comes to see me but you two young fellers; but I ain't lonesome. And some day, maybe I'll find the ledge that throwed the gold in this here gulch, and——"

When he stopped and stared at the crests of the hills, as if thinking of such an achievement, David asked impulsively: "And—and what'll you do then, Bill?"

The patriarch rubbed a hand across his eyes as if disturbed and perplexed, and then said, "do then? Do then? I'll—I'll—why, I don't just know what I'll do. I wouldn't want a lot of people here in this camp of mine. They might spoil things. But—I'd like one of them talkin' machines that sings songs and makes bands play, and all that. If I was rich, I'd git me

one of them things and git some feller ter learn me how ter run it. Then I'd take her out under the trees on nice days and play all them tunes, and —— Do you fellers reckon trees hears things like that and likes 'em?"

The partners gravely admitted that they had never considered such matters, and humored his whimsies, by admitting that they hoped trees did hear, and that Old Harmless might find the ledge, and buy the phonograph.

On a certain Christmas Eve they made their trip in the moonlight, when the great shield of snow beneath the still and motionless trees lay pale, or patterned with the infinite beauty of lacework wrought by shadow in nature's inimitable, delicate intricacy. Their snowshoes squeaked crisply. The exhalations of their breathing thrust tiny clouds of gray vapor ahead of them; but of all these physical manifestations they were oblivious, because the giant carried under his arm, as tenderly as if it were an infant, a square box, and behind him came the sturdy, squat figure of David, his partner, taking two steps to the giant's one, panting, and with equal care clutching across his shoulder in a sling another box filled with records.

"I reckon," David panted, "that he'll be tickled to death with that tune called Clementiner, seein' as it's about an old cuss who mined hereabouts in 'forty-nine."

"Humph! Met my love on the Alamo suits me better," Goliath grunted.

"Sh'd think you'd had enough of wimmen," said David scornfully.

"They ain't got nothin' whatever to do wih tunes," Goliath replied with such emphasis that his partner read the danger signs and made no further comment. And preference for tunes meant nothing when they witnessed the joy of Old Harmless, for it amounted almost to stupefaction.

"As fur as I kin see now," he said, after listening to the entire collection of records, "they ain't much else on this earth that I specially hanker fur. If I don't never strike that there ledge—and she's sure here somewheres!—I kin always scratch up enough dust ter buy grub and what clothes I need, and I live in the all-firedest purtiest place in the whole gosh-dinged world, and now I got somethin' to sort of keep me company, in that box you boys has brought me! Yes, sire-e-e! I reckon I'm about the happiest man on this earth."

At intervals the partners brought fresh records across the ridge to the abode of happiness, and the gratitude and contentment of Old Harmless

seemed never to wane, although the wonderful ledge was no nearer discovery than it had been for twenty years. Sometimes they questioned him, curious as to his complacency. Themselves determined and persevering men, they yet knew that even to any persistence there is an end; but here was one who had for more than fifty years dreamed a dream, and worked to bring it to reality, with a courage that was undismayed by failure.

“You beat me, Uncle Bill,” David declared, with a shake of his head. “I should think that by this time you’d be about ready to give up findin’ that ledge.”

“Give up? Me give up? Why, son, I’m as positeeve there’s a ledge here as I am that I’m alive!” exclaimed Old Harmless, emphasizing his assertion with a slap of his gnarled hand on his lank and bony knee. “Spring’s a-comin’ ag’in, and when the rain washes off the dust and top layers, and shows the rocks in bright colors and marks out the formations, I’ll find her, all right! Yes, sir-ee! I’ll find her.”

“But why ain’t you found it before this—in some of all the other springs when it rained, Uncle Bill?” David persisted, eying him shrewdly from beneath his thatch of red eyebrows.

“One man cain’t look at every foot of all the hillsides, in one spring, or a dozen of ’em, kin he?” Old Harmless snorted as if derisive of the younger man’s sagacity. “I’m workin’ them hillsides by sections, I am. And—by Matildy Ann!—I don’t seem able ter do as much as I uster; but I’m pluggin’ along. I’ll git her yet!”

“But you don’t seem to git nowhere and the——”

“Git nowhere? Me? By heck! I’ve gotten farther’n most men. I’ve got one whole side of a gulch prospected. I’ve paid all my bills. I got grub enough right now ter run me for more’n a year. I got the finest cabin in the world. I ain’t never done a human bein’ any wrong in all my life. I ain’t never harmed a woman and—when I had money I eddicated two nevvies and a niece. I ain’t never spoke ill of no man. And if you think, son, that the Lord Almighty’s goin’ to let a feller like that down, you’re a damn fool. That ain’t the way He does things. No, sir-ee! He’s a pardner of mine, the Lord is, and I got an old book here what proves it!”

And flurriedly, indignantly, he jumped to his feet, grabbed a battered old Bible from a shelf, and banged it down on the table in front of the skeptical

David; banged it so hard that the tin dishes thereon rattled and danced and gyrated. The partners could not but respect his unbending faith.

“David, you shut up!” growled Goliath, admonishingly, and scowling at his partner until his heavy black eyebrows met above the bridge of his high, thin nose.

“Maybe we had better quit argifyin’, and hear them new tunes Goliath and me brought over,” said David, sagaciously changing the subject. And immediately thereafter Old Harmless was mollified, and sat with open mouth, distorted fingers combing his long, white beard, and one hand cupped behind his ear as if intent upon assisting that very acute organ, attuned to great silences and tiny sounds, to drink in all the magic that issued through a huge tin horn. No further reference was made to their discussion until just before the partners departed when the old man said, as if ashamed of his vehemence, “Davy, you did git me riled up a while ago, and—and—I’m right sorry I talked so hot. It ain’t befitin’ a man of my years ter git his mad up that a way, and if I said anything ter hurt your feelin’s, son, I takes it that you understand that I’m an awful quick-tempered man.”

And all the way over the trail David chuckled as if greatly amused over what to him had been nothing more than a joke.

“You shouldn’t have argued with that old cuss that way,” Goliath rumbled, as if sensing his partner’s thoughts. “He believes the Lord’s his partner, and he don’t like to have nobody thrownin’ stones at Him.”

And David’s face softened and his eyes became thoughtful and he said in a highly hushed voice, “Goliath, I reckon you’re right. And—I ain’t so damn certain but what the Lord is a partner to a man like old Uncle Bill, after all. I’d orter be ashamed, and—I am!”

The spring season came as usual, with nature’s immutability. The snows wilted and sogged, and gave way to gurgling rivulets that trickled in innumerable hidden channels, until moist bare spots broke black and open, as if fighting to find the sun. The trees began to throw out shoots of green and migratory birds returned after their winter’s absence. The partners found the trail more difficult to Harmon’s cabin, and less idle time upon their hands.

Their attention was returned to Old Harmless in a peculiar way. It was when the county sheriff rode into their clearing one afternoon, dismounted,

and called them from the pay dump on which they stood.

“Great Scott, Jim, what’s up? What brings you here?” David said, shaking his hand.

The sheriff grinned, as if amused, shook hands with Goliath, and said, “That old patriarch over the ridge—old Harmon. He’s—he’s gone loco. Got anything to eat? I’m hungry as a wolf. Haven’t had a mouthful since five o’clock this morning. If you can spare me a snack, I’ll tell you all about it, while I’m sponging off of you two fellers.”

It was while David cooked the bacon and Goliath mixed flapjacks that he explained.

“It seems,” he said, “that old Uncle Bill ain’t got any more title to that ground up there than a man has to something he never saw before, or heard of before, in all his life. That land was patented more than forty years ago, and the taxes have been paid regularly by the heirs of the original owner. Must have been that they didn’t know that Bill Harmon was livin’ on it, or—maybe they didn’t care a cuss seein’ as they wasn’t using it. Anyhow, they sold her out, lock, stock, and barrel, to Hiram Newport, down in Placerville. You know him, I reckon. Lawyer. Lends money on mortgages, and owns a bank of his own.”

“Dirty old skinflint!” David exclaimed.

“Course we knows him. Pirate!” Goliath rumbled.

“Well, it seems old Newport had a scheme up his sleeve, and he goes back East somewheres and gets some feller that makes a specialty of buildin’ reservoirs and power plants, interested in this land. And Uncle Bill’s place being in a big gulch with a narrow outlet that could be dammed easily, is a sort of key to the whole blamed thing. Feller that Hiram goes to takes an option. Sends out some engineer experts of his to pass on it. They goes up with a few men to make a survey. Old Harmless is at first sort of dazed, then when these engineer fellers tells him what’s up, he tells ’em he owns that gulch and for them to get to hell out of there. When they don’t hike the old man gets his dander up and it’s sure up all right—just as if bein’ peaceful and quiet for longer’n any one can remember had sort of bottled it up for fair, and now he’s got the cork out.

“Uncle Bill goes into his cabin and shows up with his Winchester and—you know how that old feller can shoot. Well, he shoots the hat off one

engineer's head, takes a second shot at a mighty costly theodolite they'd planted, and scores a bull, then with a few shots just above their heads sort of hastens their gallop as they're takin' down the trail. They come down to me and demand the protection of the law. I laughed. It seemed so foolish for anybody to be afraid of Old Harmless who'd never fought anybody or anything for more'n forty years. I thought I'd have to go up and see about it, however, so off I goes, all alone."

He stopped, scratched his head, and grinned as if amused with his own experience.

"By heck!" he exclaimed, slapping his hand on his knee. "That old cuss was plumb full of fight! A catamount hadn't nothing at all on him. I tell you, boys, Uncle Bill's gone mad. I rode up to his clearing and toward his cabin, and then the door opened and there he stood with that gun of his in his hand, and he yells, 'No need ter come any farther, sheriff. I been expectin' you. Me and you's been good friends—up ter now, and I'd hate like sin ter have to draw a bead on you. But I ain't goin' ter let you come no closer. This land is mine. I'm goin' ter keep it. I'm goin' ter fight fer it. Maybe in the end you'll git the best of it, but it won't be so long as I can twist the fust finger of my right hand over a trigger. You go back and tell the fellers that sent you that all I ask is to be left alone ter gyard what's my own. It's mine, and they ain't nobody at all can take it away from me without a fight.'

"Well, I didn't quite know what to do. I was so surprised like. I didn't even have a shootin' iron on me, and I saw he meant business. I tried to argue with him. No good! Uncle Bill is gone loco! And the hell of it is that I ain't got no use for that old scoundrel Newport, and that I wouldn't hurt Old Harmless for all California, because I like him, and—yet—I'm sheriff. Wish I wasn't!"

With an air of dejection he bent forward and twisted his hands together between outspread knees, thought for an instant, and then looked up at the partners.

"So," he said, "I come away—right fussed up. Then I happened to recollect that Uncle Bill's awfully fond of you two fellers. He's always shootin' off his mouth about how good you been to him, and how you give him a phonograf, and—one time he told Mike Kelly, who runs the saloon, that he didn't care so much about discoverin' that ledge he's always hoping

for on his own account, but that he'd be willing to croak if he could find it and make you two a present of it!"

He straightened up and became seriously intent on his business again.

"I'm the sheriff," he said. "I swore I'd enforce the law. Uncle Bill's got to get out of there, if I have to take a posse and shoot him out. I won't do that until everything else has been tried, and found no good. You two have just naturally got to go up there and tell him so, and show him how he's got to go, because he can't fight the law. He'll listen to you two men, and he won't listen to nobody else. You got to show him that he ain't got a leg to stand on, and that I've got to do my duty what I swore to do, and that I'm goin' to do it no matter how much it hurts. Get me?"

The sheriff stared inquiringly at the two partners, who shook doubtful heads, consulted each other with their eyes, and appeared distressed. It was David, who, as usual, did the talking for both, who spoke first.

"We'll go, willin' enough, sheriff, because we see just how it is; but—I'm awfully afraid you've put a job up to us that we can't get away with. Honest, I am! You see, it's this way. Uncle Bill's a funny old feller. Got queer notions about things. He loves that place up there, not so much for what it's worth, because money couldn't buy it at all; but because he talks to the trees, and has a notion that the same birds come to 'im every year, and all that. They're all like children to him, and they're all the family he's got. Uncle Bill told me one time that his place up there was his idea of heaven, and that if he died and the Lord Almighty'd let him, all he would ask would be to just come back there and keep on livin' and workin'. Said he wouldn't mind it even in spite of his rheumatiz, which he gets most awfully bad in wet seasons.

"You got to look at that from his viewpoint, and put yourself in his place. Well, if you was to get to heaven, and the place suited you mighty fine, and you'd got sort of used to it after livin' there for about fifty years, and along came some big, husky angel with a nickel-plated star on his chest and undertook to chuck you out, when you thought you hadn't done nothin' wrong, I reckon—I reckon, sheriff—you'd fight, too —wouldn't you?"

The sheriff somberly admitted that he "Reckoned he would."

"So!" said David. "That's just what we're up against. But—me and Goliath'll go over there and try to do some persuadin'. Only, sheriff, it's

goin' to take some time. Maybe two or three weeks, and maybe we can't do it at all. He's powerful set in his notions, Uncle Bill is."

Again the sheriff scratched his head and ruminated.

"It ain't business," he grumbled, "but I can put things off for a whole month, I guess, rather than start a war on that poor old cuss. And then if he doesn't go—by Jehos'a-phat! He must! Even if we have to tote him out on a shutter." He stopped and groaned. "Lord! This is the most unpleasant and toughest job I've had to tackle since I been sheriff, and this is my fourth term in office. Road agents and train robbers is easy compared to this, because then you expect to have to shoot and don't mind it at all; but to have to shoot Old Harmless—— Good Lord! It's awful!"

David sat thoughtfully scowling at the floor.

"How can you put it off a month?" he asked, as if working over a problem.

"Well, you see, I can just naturally neglect arresting Uncle Bill on the charge of bein' too free with his rifle, and as far as throwing him off the land is concerned, Newport will have to first of all bring an action in court for ejectment and demand possession, and all that, and—by Jingo!—maybe that could be dragged on for months, if Uncle Bill got a good lawyer! But—just the same—in the long run, I'm afraid he'll have to go. Now, if we could square up this shootin' business, which comes first of all, it would make things a lot easier for me. If the engineers were to be fixed up some way so——"

David suddenly jumped to his feet and announced his conclusion, as if he had discovered a plan. "That's the first step. I'm goin' to try it. I'm goin' on in with you and talk to these men. Goliath, ain't you got any cawfy made for the sheriff? You don't reckon he's goin' away sayin' that all we give him to drink was water, do you?"

All through the sheriff's repast the three discussed plans; but when the sheriff rode away the little red-headed man accompanied him, walking alongside the horse and clinging to a latigo, or taking turns at riding until they could reach a place where an additional mount could be secured. And it was late in the evening when the sheriff and the miner, fellow conspirators in a good cause, rode through the shaded street of the county seat and parted company in front of the hotel.

“It’s up to you now, Dave,” said the sheriff, bending from his saddle and staring across at the lighted shop windows on the opposite side. “Of course, you mustn’t tell ’em that I’m in on this. I’m supposed to be hot and anxious to get any old goat that drags a gun in this country. Sabe?”

“Um-m-huh,” David replied. “If I have any luck you’ll get word to-morrow mornin’ that all charges is withdrawn. And then it’s up to that old skinflint, Hy Newport, to begin his court business. That’s right, ain’t it?”

“That’s the way of it,” said the sheriff. “So long.”

“So long,” said David, and muttered to himself, “There goes one good sheriff what gets my vote every time he runs!”

He found the two engineers in the hotel lobby, and decided that they were real human beings. Moreover, fortunately for his mission, they appeared to be in good humor and were laughing at something which was being told them by their companion, who proved to be a mine owner with whom both Dave and Goliath were friends.

“Old Tom Darrow,” said David to himself, sliding toward his prey, and then to his astonishment he heard Darrow exclaim, “There’s one of ’em now. Dave, come over here and meet a couple of friends of mine.”

The moment was opportune, and David had never been accused of being dilatory in action.

“Mighty glad to meet you,” he said, accepting a proffered chair. “In fact, I came clear down here from the hills to see you. It’s about old Uncle Bill Harmon—Old Harmless, they call him.”

“Harmless be hanged! That old devil is about as harmless as an angry tiger, I should say,” exclaimed one of the engineers; but his laugh encouraged David to proceed with his mission. And so earnestly did he plead for a dismissal of the incident, ably seconded by Darrow, that the engineers were impressed.

“I’ll tell you what we’ll do,” said the chief. “If I’m paid for my theodolite, and my partner is supplied with a new hat, we’ll go to-morrow and tell the sheriff to drop it. As a matter of fact, we got a pretty good rough knowledge of that gulch and its possibilities before harmless Harmon discovered us, and opened up with that cannon of his.”

Before he had finished talking David had recklessly dragged his blue shirt tails free from his trousers and was fumbling at a money belt

concealed beneath.

“Cash talks,” he said tersely, as he produced his belt, and entirely unconscious of the amazed grins of two or three other spectators in the lobby, jerked the belt loose and proceeded to tuck his shirt tails back into a more conventional shape. “I don’t know what a theodolite costs; but there’s nigh on to a thousand dollars in this leather, and if that ain’t enough, I reckon Tom here’ll lend me some till I can get to the bank to-morrer mornin’.”

The engineers, amused, named prices far more modest than David had expected, and he breathed a huge grunt of relief.

“Well,” he said, “that’s mighty nice of you. You won’t lose nothin’ by bein’ good fellers, if ever you come my way. I’m off now. Got to get back to-night, so’s to try to persuade Uncle Bill not to shoot up anybody else. It’s gol-darned expensive, shootin’ up folks is.”

And despite their urgent dissuasions he departed, considerably relieved in mind; but it was nearly dawn when he awoke Goliath in their cabin to tell him of his success.

Very diplomatically the partners decided that the best time to visit Old Harmless would be in the evening, lest he be alarmed or be rendered suspicious by their appearance at an unusual hour. They trudged into his clearing, with David in advance carrying two or three phonograph records they had been waiting to present. They discovered that the windows of the cabin had been barred with heavy saplings, and then, as they rounded the cabin, found the defiant Uncle Bill sound asleep on a bench in front of his door, with his patriarchal beard sweeping over his chest, and his rifle resting across his lap. He looked pathetically old and tired. When aroused by their hail he sprang to his feet, peered at them and made certain who they were before he laid his rifle aside, after which he told them of his distress. They listened patiently until he had talked himself to a mournful and dejected silence, and Goliath watched David, wondering what decision his partner would make, and what he might say.

“Well, Uncle Bill,” David said at last, “it’s tough luck. You say the sheriff told you that old Newport owns this land and——”

“Claims it! Drat him! Claims it! But that there don’t make him own it, do it?” roared the patriarch, shaking his fists upward in exasperation.

“So,” David went on calmly, and paying no heed to Uncle Bill’s anger, “I reckon it’ll have to be decided by the courts.”

“Courts be damned!” roared Old Harmless. “Let ’em try to take it away from me and drive me out of here. Me, that found this place first, before any other white man ever come here! That diskivered the diggin’s, and worked ’em, and saw this when she was a camp and——”

In vain the partners discussed the question with him. In vain they assured him that he could not fight the law with a rifle. In vain David told him that the sheriff was compelled, however reluctantly, to do his duty. And so at last, after a long silence, he said, “Well, Uncle Bill, if you’re bound to have a war, of course you’ll get the worst of it. First they’ll send sheriffs. Then if you fight all them off—never can tell!—why, Uncle Bill, I reckon they’ll call out the whole United States army, and bring cannons and rifles and batterin’-rams and all them things, and just naturally wipe you and the whole dinged valley off the map. But—just the same, whipped for sure before you start, bound to get shot all to smithereens, if you’ll do what Goliath and me tell you to do, we’ll be with you when it comes to a finish, won’t we, Goliath? We’ll just oil up our rifles and guns, Uncle Bill, and come right up here and fight with you.”

The old man gasped, and then tearfully seized and wrung their hands. He was speechless and helpless with gratitude. David let him subside and winked slyly at Goliath before he went on.

“But,” he said impressively, “there ain’t to be no shootin’ of any kind till the court’s had its say. Maybe that old leech Newport won’t do nothin’ at all, Uncle Bill.”

“Then—then—what’d you do if you was me?” queried Old Harmless bewildered.

“Do? I’d just keep right on workin’ as if nothin’ had happened. And if anybody comes around, let ’em alone, or tell ’em it’s your land, and they’re welcome to look at it. Tell ’em what nice trees you got, and let ’em hear you play the phonygraft, and if old Newport comes tell him you’re puttin’ it up to the court to say who owns this gulch, and that you’ll not have any truck with him till it does say, and that Goliath and me’s on your side, and goin’ to fight it clean through with you? Will you do that?”

They extracted a very reluctant promise from Old Harmless, but got it nevertheless, and devoted the remainder of the evening to restoring his

peace of mind. Indeed, they scorned the idea that there was danger of his being ousted from that wonderful home of his, and at last left him in a more hopeful mood than they themselves enjoyed.

“What did you tell the poor old feller all that stuff for?” Goliath demanded, when they were well clear of the cabin on their homeward way.

“Deplomacy, pardner!” David explained. “To keep him from killin’ somebody and—to give us time to think up some way of helpin’ him. Time’s what we need now. The sheriff told me that if it comes to court, a lot of things can happen. So you see, if it comes to law, and Hiram gets the title we’ve still got time to—wonder if me and you could buy him off?”

“If we had enough money,” the giant growled. “But if there’s one of these big companies in on the deal, and they want it badly, I reckon all you and me could dig up wouldn’t make ’em do any more’n grin.”

They plodded along in silence for a while, and then David said, “Well, if worst comes to worst, we’ll have to gentle old Uncle Bill down, and get him used to it as best we can, and bring him over to live with us.”

“Of course!” Goliath assented. “That goes without any gab. Poor old feller!”

They were still distressed and perturbed when they bade each other good night and crawled into their bunks. And for the next three or four days they could think of or discuss nothing save their perplexity.

Distraction came unexpectedly, with the arrival of a visitor who was brought to their cabin one afternoon in a hired conveyance, and who shouted a boisterous greeting. They did not recognize him at first, and then David exclaimed, “By the great horn spoon! It’s Heald. Heald that we got out of Mexico with.”

“What? That feller we grabbed out of —— It is! Sure enough!” Goliath exclaimed as they rushed forward to shake hands with a man whose life they had saved at the imminent risk of their own necks. “What on earth brings you here, Heald? Thought you was in Colorado?”

“Was, the last time I wrote you,” said their visitor with a quiet grin. “Told you men that if ever I came within a thousand miles of you, I’d look you up. I certainly owe you that much, don’t I? And so I’m here. Can you put me up for a week or so? I want to fish a little and maybe shoot at something and—talk over old times. I want to rest.”

Beyond that strange adventure in which they had saved his life, they knew little of him, save that he was a strangely reticent man, evidently capable, courageous, and sometimes a wanderer. They had accepted him as being somewhat like themselves, an adventurer into strange places, accustomed to vicissitude, and well-enduring. That he had remembered them through the years with occasional letters, and once or twice a Christmas gift of a box of cigars or something similar, was merely surprising. The fact that they had imperiled their own lives in his behalf had not impressed them as being any reason for the remembrance; but they were eager to welcome him as an old friend. They were prepared to act as hosts without apologies for the roughness of their hospitality, and he, in return, accepted it as if it were that to which he was entirely habituated.

It was in the dusk of the evening, when they had settled lazily into the crude, homemade and comfortable chairs outside the cabin, and when they had exhausted their reminiscences, that David mentioned the subject uppermost in his mind, and explained how he and his partner had been sympathetically perturbed by the misfortunes of Old Harmless.

“Maybe,” said Heald, “I can help you out on that, some way. I’m—I’m a pretty good lawyer myself, and I’ve had some experience in land titles.”

They had not surmised that he was a lawyer, for never had he told them of his personal activities, or occupations; but now they turned toward him as does a swimming, shipwrecked man to a life raft. He sat and listened as they gave him the details of the situation, sometimes asking a shrewd question, sometimes smoking silently and thoughtfully, a stolid, motionless figure lolling back in his chair. The glow of his pipe alternated with darkness as regularly as the blinking of a lighthouse lamp at a distance.

When they had concluded, they waited for him to speak in a prolonged silence, and hung upon his words as if upon a decision. Ignorant of the complexities of the law, they hoped that he might at once advise them and set their minds at rest, and were annoyed when he said, at last, “Of course, I can’t very well say, offhand, what should be done. I suggest”—he stopped, puffed some more, discovered that his pipe was nearly empty, leaned over and thumped the bowl against the chair leg, refilled it, and by the time the partners were straining with impatience resumed—“I suggest that you take me over so that I can talk with this old man Harmon, and see what he has to

say about it. A lawyer can scarcely have a client without consulting him, can he?"

His dry, matter-of-fact tone did not offer the partners as much hope as they craved; but they had to admit his logical attitude.

"We'll go over there to-morrow night," said David. "That is, if you can stick such a long walk."

Heald laughed.

"I've walked a few hundred miles in my time," he said. "I don't think I'm too old to do a few miles more. It seems you fellows are mightily interested in this man you call Old Harmless, and—I owe you a lot—it strikes me; a lot that I've never found any way to repay. Why, if it weren't for you two, I'd not be here to-night. I'd be dust under a Mexican wall long before now. And so—if I can do anything for you, or a friend of yours—— Yes, I think we must go over to-morrow, so that I may become acquainted with Uncle Bill. I think I'll like him. There are some real and simple souls left in this world, after all."

On the following day he proved to be a far more competent pedestrian than the partners had surmised, and when they stopped at the edge of the clearing and looked up the narrow gulch that, bottle-necked, opened out to their view, he stood and for a long time looked at it, his eyes roving from the great stone gates upward to the crests of the hills, to the great snowclad peaks in the background, and thence slowly across to fix themselves on the homely old log cabin from whose stone chimney smoke lazily curled, indicating that Uncle Bill was preparing his evening meal.

"It's a beautiful place. It does seem almost a pity to spoil it," he said quite as if soliloquizing, and then slowly trudged forward.

"You'll maybe have to go slow with Uncle Bill," David cautioned him, "because he's sort of sparin' of talk with strangers. But if——"

"He can talk enough once he knows and likes a man," Goliath hastened to add, as if fearful that Heald might be discouraged; but Heald merely nodded his head and appeared thoughtful.

"We may have to hang around a long time, or maybe come again before he gets limbered up," David remarked.

"But he'll talk after he knows you—that is—if he decides he likes you," Goliath urged, and this time Heald smiled at the partner's solicitude.

“Perhaps you’d better leave most of it to me,” he said. “All you need to do is to introduce me as a friend of yours.”

The partners agreed. They had no time for further comment, for the keen ears of the patriarch had made him aware of their coming, and he appeared in the doorway, blinked at them, and then called heartily, “Well, well, well! Ef it ain’t David and Goliath again! And——”

He stopped and stared at Heald as if apprehensive lest the advent of a stranger meant bad news, but was reassured in the warmth of their introduction.

“Anybody who’s a friend of these boys,” he said gravely, “is sure ter be a real man and a friend of mine. So, mister, you’re welcome. Come on in and I’ll hack off some more ham, and hot up some more beans. Baked a new batch of bread ter-day, but she ain’t as good as I could have made her if I’d a-knowned I was goin’ ter have company.”

“Do you feed everybody that comes this way?” inquired Heald.

The old man turned from cutting the ham to stare at him with something like indignation that such a question should be asked.

“All my life,” he declared, not without dignity, “there ain’t never been a man, woman nor child, white or red, tan or yaller, come through my cabin door and gone away hungry. I’ve tried ter be hospiterble ter some I didn’t like. An’ I’ve whacked up my last ounce of grub with a friend, and never felt sorry because my own guts cried for food and there didn’t seem ter be any more on earth.” He stopped with his knife in midair, studied Heald’s face for a moment and abruptly asked, “Young man, I call you that though you might be fifty year old, which is young for me—young man, do you believe in the goodness and kindness of the Lord Almighty? Well, if you do, you’ll know that I ain’t never come ter want. Somehow, when things looked mighty black and hopeless, He always came along and helped me out! Just as if He’d said, ‘Hello. Had so many folks ter look after and think about I’ve had ter overlook old Bill Harmon and it seems he’s havin’ tough luck. Must help him out a little now.’ And, mister, He always did.” He stopped abruptly, made a frantic lunge for the dutch oven, and as he jerked the lid off with his knife and released a cloud of steam said, “Damn it! In a minute more them beans’d been all burned ter hell and gone!”

As if his spasm of loquacity had exhausted itself he relapsed into a silence that was maintained throughout the meal that followed, despite

Heald's palpable attempts to draw him out. Heald himself appeared to have given up, and the partners fidgeted restlessly, because he had made no reference to the land dispute, or old Harmless' side of the controversy. They were surprised when, as they were leaving, Heald turned to the patriarch and said, "Wonder if you'd mind if I came up and bunked with you a night or two, Harmon? It looks to me as if there might be some trout in this stream of yours that runs down the center of your gulch."

"I'd welcome you, or any friend of David's and Goliath's," the old man said with grave simplicity. "Come right along. There is trout there, but I ain't never had time ter catch 'em. Come right along. But—but I'd sort of like ter have you promise you won't catch no more'n what we kin eat, because—well—you see they're just the same as you an' me. They like ter live—and—this is a mighty fine place ter live in. It is! And I like ter think that even the fish down there in my stream is friends of mine in their way, and knows me."

The moon had pulled up across the divide when the visitors returned home; but the partners could not induce Heald to discuss Old Harmless, and almost his sole comment was, "Remarkable old man! Remarkable! I suppose he has to have every ounce of grub he uses teamed up there, doesn't he?"

"Packed up on an old burro he's got. Not teamed," Goliath answered. "Road up there's all overgrown now."

"Um-m-mh!" said Heald thoughtfully. "And yet no one goes away hungry, and—when you fellows show me the way up there to-morrow, I think I'd like to take along a pack of grub, if you'll sell it to me."

But they indignantly protested against a sale, although the pack of food went with Heald when they made the journey on the next forenoon.

The partners waited three days, then four, before they again visited the homely old cabin over the ridge. They found Heald and Uncle Bill sitting out in the moonlight listening to the phonograph, and smoking industriously. Heald's pants were tucked into his boots, and they noticed that he had discarded his suspenders for a leather string, and that the collar of his flannel shirt was open as if he had finally discarded neckties. He looked far less tidy and neat, but far more comfortable than when he had arrived.

“Ain’t you comin’ back with us?” David whispered when Uncle Bill left them for a moment, and in the moonlight they saw Heald’s grin.

“No,” he said. “Not to-night. The fact is, I’m getting to be just like Uncle Bill. I like it here!”

“Has he talked yet?” Goliath asked, stretching his neck toward Heald.

“Somewhat! Somewhat!” declared Heald with an even broader grin.

“Anything we can do for you?” asked David.

“No, I’m all right. But—yes, there is! I almost forgot. I’ve some letters I wish you would take down to the nearest rural box and drop in for me tomorrow. And if there’s anything comes for me, it will be dropped in your box, and you might keep them till I come down, or—maybe it will be better to bring them up when you come again. No, I’m going to stay here a while longer. I like this place.” He stopped, and then chuckled as if amused. “For sporting it’s rather a failure. You see Uncle Bill doesn’t like to have me catch more than six trout per day. He doesn’t know it, but I’ve been fly-fishing with a barbless hook for two days now, and throwing some beauties back into the stream rather than hurt his feelings. S-s-sh! Here he comes.”

After the partners left that night Heald and Old Harmless sat for a long time, smoking, and saying never a word, as if quite content with each other’s voiceless company. The moon had lifted upward and the great gulch was still save for the distant crooning sound of the brook that seemed doing an elfin dance over rocks and boulders.

“The phonygraft is wonderful,” said the old man at last; “but—but somehow I always come back ter that there music you hear out there.” He pointed with the stem of his pipe at the stream. “It’s the only music that I don’t seem ter ever hear twice alike. It’s got tunes that’s always new. Sometimes they’re angry tunes, in the spring time when the snows is meltin’. Then in about a month it’s a busy tune, as if it was sayin’, ‘Got ter git all this extry water off’n my hands, Bill, and hustle it along ter the sea, and after that when things is right again, and summer comes an’ there ain’t nobody here but God and me an’ you, I’ll try ter sing you the same songs you’ve loved for more’n fifty year.’

“Sometimes that there creek sings things that hurts a little, as if croonin’ for them that’s asleep up on that flat bench over there on the west side of that shoulder you can see. When there was a camp here in this gulch in the

early 'sixties we got the smallpox. It was purty bad. Most everybody skipped out, but them that was sick—and me. I stayed on ter nuss 'em, because, you see, if I hadn't found gold here, nobody would have come, and nobody would have died, and—and—so I felt sort of responsible like and—just stuck it out. There's eighteen men and one woman—not what I reckon some folks might call a good woman, although I know her heart was all right—that are all asleep on that hill. I buried 'em all myself when there wasn't no one ter help. And I kept up the place where they was asleep until one time I was away from here four or five year, and when I come back there was a lot of rhododendrons growin' over 'em, and then I knowed that, although I'd been gone the Lord hadn't forgotten 'em, and —purty soon the rhododendrons'll be in bloom again. The patch that grows the biggest and purtiest flowers seems to be over the camp woman's grave."

Heald sat staring off at the hillside, wondering at all the unconscious heroism of the tale. He was scarcely aware when Uncle Bill's voice added, "Sometimes in my dreams it's all the same as it was; the cabins and the tents with the smoke curlin' up from 'em; the fellers I knew gassin' about their clean-ups; the evenin's in the dance hall. And sometimes I see it about three in the afternoon, with the clink-clink of shovels heavin' dirt into the sluice boxes, and then I hear the ring of Tim Gray's hammer and anvil, up there where that tall tree stands, where he had a blacksmith shop; and the stage comes in and some of the boys knocks off work and goes up ter see if there's any news from home for 'em.

"Harmon's Camp, they called it then. And I was Bill Harmon—not Uncle Bill. I lifted a pack burro, pack and all, on a bet, one day in them times. Yesterday I had ter rest three times before I could roll a bowlder the size of a barrel out of my way. But—I'm here yet!" He turned toward his guest and said fiercely, in his thin, old voice, "And kin you blame me for fightin' when they try ter drive me off'n this place that's mine? I know it ain't right ter shoot, but—— Good Lord! ain't it mine? Kin you blame me?"

"I can't!" said Heald, in a voice that sounded as if subdued by reverence. "But if——"

"There ain't no buts! There ain't goin' to be none! You see how it is, son. I'm here. It's the only place that's home ter me. And so I'm goin' ter stay. If they think they've got the best of it, I'll still have 'em beat, because

they wouldn't cart a poor old cuss like me away from here ter plant him! They'll just naturally dig a hole off somewhere on the hillside and stick me in the place I love and—here I'll stay—where I've always wanted ter stay—and—and the stream down yonder'll know I'm there and sing me the same old songs, and I'll never be lonely in my sleep."

He could not see that Heald was troubled and perplexed. He could not understand that his mere possession was not title to this place.

"Hope," said Heald thoughtfully, "that they never put you off. I can't say any more. But—Uncle Bill, I will do my best, whatever comes."

"I know that, son! I'm sure of it! But—from all you've said ter me—it—it begins to look as if I've got ter depend on Somebody higher'n you or the other boys—Somebody that ain't never failed yet ter see me through!"

And then, with a heavy, weary sigh, he arose and trudged away to his bed.

It was but two days later when the partners brought Heald a bulky package of letters, that he read beneath the lamp in the cabin while the others remained outside, passing broken remarks, and sitting in habitual silences. He came outside with the announcement that the time had come for him to depart.

"But—it's all so all-fired sudden," said Old Harmless. "I've got—I've got sort'o uster you and—the grub's all right, ain't it?" he finished with an anxious look toward his guest.

Heald laughed. "The grub's so good, Uncle Bill, that if there's any way on earth to eat more of it, I'll come back. But I've got to go to-night, and be in Placerville to-morrow. Can't loaf forever, can I?"

"Nope," the old man reluctantly admitted, "I reckon you cain't. It's when a man is young that he orter be up and movin'. But—by heck!—I'm goin' ter miss you—I am." His good will still sounded in their ears when they took the trail; but the partners found Heald strangely disinclined for conversation as they threaded their way over the crests of hills, where all was bright and clear, and then descended into the shadows of the great trees where the paths were dim. It was not until, tired and glad to be in their cabin again, they reached home that the partners learned the results of Heald's mission. The lamp on the table shielded their faces as they sat on the edges of their bunks, and unlaced their boots preparatory to going to

bed. Outside, through the open door the moon still shone, and the trees stood quietly as if asleep. The silences of the open spaces surrounded them—the stillness that pervades untrammelled spots, and corners where all is clean and undefiled. Heald spoke as if impressed with all this, as if he had newly learned a great reverence.

“I’ve found it out! I’ve caught it,” he said. “I knew it would reach me some time, this thing that’s bigger than all else a man may ever learn—the love that passeth understanding. I’ve been blind. Most of us are. Uncle Bill has caught the truth.”

He came across and lifted the shade from the lamp, as if to see the partners’ faces while he talked. He bent over the crude pine table and rested his shoulder weight on the underturned knuckles of his hands, bent forward, staring at them as if challenging dispute. A great respect was in his voice, a softness of finality when he went on.

“Uncle Bill has seen things that are given to but few. He has seen that all else save the love of an invisible but understandable God is worthless; that a man may pile up gold; may achieve ambitions; may lift himself to temporary power, and yet have failed if there is not one place that is all his intimate own. He has found it. It’s his! It shall stay his so long as he lives, by God! Or else I, too, have failed!”

He lifted his right hand, clenched it into a driving fist, and brought it smashing down upon the table top. David and Goliath started from their seats, wondering.

As if their start of surprise had rendered him conscious of his vehemence, Heald paused, swallowed as if choking back unpent emotions, straightened and looked away. As if embarrassed he said, “I’m sort of upset! I’ve thought so much. I’ve learned so much, from Uncle Bill.”

As if by pretext, that he might resume the normal, he walked across to his coat that he had hung upon a peg, took some papers therefrom, scanned them, and, when he spoke again, his voice was placid and undisturbed.

“You chaps helped me out, one time, when otherwise it would have been a finish for me. That’s one point. You brought me up against Bill Harmon, for which I thank you, and that’s point two. Point three is that I’m the one who is behind the big reservoir scheme—the man who puts up the money. Newport brought it to me in New York, and I took an option. I sent my experts to look it over. Uncle Bill made a fool of himself. My experts wired

me and I came on, not only to look this project over, but to meet you two men who had befriended me. The two matters fitted into each other and I wished a rest; something to do besides piling up money.”

He tossed the papers in his hand upon the table, and then pointed at them.

“Those,” he said, “are the deeds to all the land in that part of the hills—the land that Hiram Newport pulled together and sold to me. It was to close the deal that I sent through you some letters and checks, which you mailed. The deeds you brought back. The whole of it is mine. But—listen now, and mark it down. It’s my word! It’s a thing I never break.

“So long as Uncle Bill lives, he’s never to know that the land up there isn’t all his own! So long as he lives there’s never a tree in that gulch shall fall by the hand of any man! Never a dam be build across that brook! Never a bird’s nest be pulled down from a bough! Never a trout taken from the stream, without his consent. I don’t want nor need money of the kind that comes from an operation like that. Uncle Bill is to be unmolested as long as he lives—”

He came to a full stop, stared at the table top, then at the amazed partners and said whimsically, “That is—unless I molest him, which, Heaven knows, I hope not to do! I’ve found a new hobby of my own. You two can help me out on that, maybe.”

“What is it?” they blurted out, still mazed in wonderment.

“I’d like to have you persuade him to let me build a big log addition to that cabin of his, up there in his and my gulch, and make it as comfortable as money can do, for Uncle Bill and me; something that he’d like and could enjoy. Some place that I can come to when I want to get away from making money, and meet nothing but a fine and honest, a homely and real old man. I can afford it. The big reservoir can wait. And”—he concluded impetuously—“I don’t care if it waits until both Uncle Bill and I are gone, because that place is ours—his and mine—and what any others may think will not matter to us at all! From now on Uncle Bill and I are partners in this thing—that is—if he’ll let me into a partnership that he is convinced includes at present himself and the Lord Almighty! A partnership like that can’t be beat, after all, and it’s about the only one for which I’m hankering.”

Transcriber's Note: This story appeared in the December 7, 1920 issue of *The Popular Magazine*.

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